

24CHCV03039 24CHCV03039

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Case Number: 24CHCV03039 Hearing Date: September 11, 2026 Dept: F49

Dept. F49

Date: 9/11/26

Case Name: Richard Jones, Olivia Chan-Jones vs. Chad M.
Schott, Brooke K. Schott, and Does 1-50

Case No. 24CHCV03039

LOS ANGELES SUPERIOR COURT

NORTH VALLEY DISTRICT

DEPARTMENT F49

SEPTEMBER 11, 2026

MOTION TO COMPEL FURTHER
RESPONSES TO SPECIAL INTERROGATORIES

Los Angeles Superior
Court Case No. 24CHCV03039

Motion filed: 4/13/26

MOVING PARTY: Defendants Chad M. Schott and Brooke
K. Schott

RESPONDING PARTY: Plaintiffs Richard Jones and
Olivia Chan-Jones

NOTICE: OK

RELIEF REQUESTED: An order from this Court compelling
Plaintiff Richard Jones to serve further verified responses, without
objections, to Defendants' Special Interrogatories, Set One.

TENTATIVE RULING: The motion is DENIED. The request
for sanctions is DENIED.

BACKGROUND

This action arises from an alleged
breach of an oral agreement between the parties regarding the sale of property
located at 24400 Cavaliani Place, Valencia, CA 91355-6054 (the "Subject
Property").

On August 23, 2024, Plaintiffs
Richard Jones ("Richard") and Olivia Chan-Jones ("Olivia") (collectively,
"Plaintiffs") filed the Complaint against Defendants Chad M. Schott ("Chad"),
Brooke K. Schott ("Brooke") (collectively, "Defendants"), and Does 1 through
50, alleging the following causes of action: (1) breach of contract, (2) fraud,
and (3) declaratory relief. Subsequently, on January 9, 2025, Defendants filed
their joint Answer to the Complaint.

On
the same day, January 9, 2025, Defendants filed a Cross-Complaint against
Plaintiffs and Does 1 to 50, alleging the following causes of action: (1)
breach of contract, (2) breach of implied covenant of good faith and fair
dealing, (3) negligent misrepresentation, (4) unjust enrichment, (5) fraud in
the inducement, and (6) declaratory relief. Subsequently, on April 17, 2025,
the Court sustained in part Plaintiffs' demurrer to the Cross-Complaint as to
the second and third causes of action, with leave to amend. On May 28, 2025,
Plaintiffs filed their joint Answer to the Cross-Complaint.

On
April 13, 2026, Defendants filed the instant motion to compel Richard to serve
further verified responses to their Special Interrogatories, Set One (the

“Motion”).

On

August 27, 2026, Richard filed an Opposition.

On

September 3, 2026, Defendants filed a Reply.

ANALYSIS

“On

receipt of a response to interrogatories, the propounding party may move for an order compelling a further response if the propounding party deems that any of the following apply: (1) An answer to a particular interrogatory is evasive or incomplete. (2) An exercise of the option to produce documents under Section 2030.230 is unwarranted or the required specification of those documents is inadequate. (3) An objection to an interrogatory is without merit or too general.” (Code Civ. Proc., § 2030.300, subd. (a).)

A.

Procedural Requirements

(1)

Timeliness of Motion

A party must bring a motion to compel further responses to interrogatories within 45 days after the responding party serves verified responses or any supplemental verified responses. (Code Civ. Proc., § 2030.300, subd. (c).) Parties may also agree in writing to a specific later date by which to file a motion to compel further responses. (Ibid.)

Although not “‘jurisdictional’ in the fundamental sense, [the time limit] is ... ‘jurisdictional’ in the sense that it renders the court without authority to rule on motions to compel other than to deny them.” (Sexton v. Superior Court (1997) 58 Cal.App.4th 1403, 1410.)

Brooke attests that Richard served several sets of responses to Defendants’ Special Interrogatories, Set One after the Court granted Defendants’ motion to compel compliance with a prior Court

order directing Richard to further respond to the interrogatories. (B. Schott Decl., ¶¶ 6-7.) The latest of those supplemental responses was served on April 8, 2026. (Id., ¶ 7.) Presuming service by mail, the deadline to bring a motion to compel further responses would accordingly have been May 28, 2026. The Motion, filed on April 13, 2026, was therefore timely.

(2)

Meet and Confer

A motion to compel further responses to interrogatories must be accompanied by a meet and confer declaration under Section 2016.040. (Code Civ. Proc., § 2030.300, subd. (b)(1).) A meet and confer declaration must “state facts showing a reasonable and good faith attempt, either in person, by telephone, or by videoconference, to informally resolve each issue presented by the motion.” (Code Civ. Proc., § 2016.040, subd. (a).)

Brooke attests that the parties engaged in extensive meet and confer efforts between March 6, 2026 and April 12, 2026. (B. Schott Decl., ¶¶ 9-10.) Those efforts included substantial written correspondence and telephonic meet and confer. (Ibid.)

The Court finds Defendants’ meet and confer effort to be satisfactory.

(3)

Separate Statement

“Any motion involving the content of a discovery request or the responses to such a request must be accompanied by a separate statement. The motions that require a separate statement include a motion ... (2) To compel further responses to interrogatories.” (Cal. Rules of Court, Rule 3.1345, subd. (a).) The separate statement must “provide[] all information necessary to understand ... all the responses ... that are at issue” and “be full and complete so that no person is required to review any other document in order to determine the full request and the full response.” (Id., Rule 3.1345, subd. (c).)

Defendants have complied with the separate statement requirement.

B.

Request for Judicial Notice

A court may take

judicial notice of “[r]ecords of ... any court of this state.” (Evid. Code, § 452, subd. (d).) A court must take judicial notice of court records if a party requests it, provides sufficient notice to each adverse party, and furnishes the court with sufficient information to enable it to take judicial notice. (§ 453.) Upon taking notice of court records, the court accepts as true only that (1) they were filed, and (2) the assertions therein were made; the court does not take notice of the truth of their contents. (See *Joslin v. H.A.S. Insurance Brokerage* (1986) 184 Cal.App.3d 369, 374-375; see also *Day v. Sharp* (1975) 50 Cal.App.3d 904, 916.)

Richard requests that the Court take

judicial notice of this Court’s April 10, 2026, April 27, 2026, and May 4, 2026 minute orders in the instant action. These orders are records of the Court and are proper subjects of judicial notice. The Court accordingly GRANTS the request.

C.

Motion to Compel Further Responses to Special Interrogatories, Set One

The responding party must respond “in writing under oath separately to each interrogatory by” answering the substance of the interrogatory, exercising an option to produce writings, or objecting. (Code Civ. Proc., § 2030.210, subd. (a).) “Each answer in a response to interrogatories shall be as complete and straightforward as the information reasonably available to the responding party permits.” (§ 2030.220, subd. (a).) “If an interrogatory cannot be answered completely, it shall be answered to the extent possible.” (§ 2030.220, subd. (b).) “If the responding party does not have personal knowledge sufficient to respond fully to an interrogatory, that party shall so state, but shall make a reasonable and good faith effort to obtain the information by inquiry to other natural persons or organizations, except where the information is equally available to the propounding party.” (§ 2030.220, subd. (c).)

“As a general matter, the statutory scheme imposes no obligation on a party propounding interrogatories to

establish good cause or prove up the merits of any underlying claims.” (Williams v. Super. Ct. (2017) 3 Cal.5th 531, 550.) A litigant “is entitled to demand answers to its interrogatories, as a matter of right, and without a prior showing, unless the party on whom those interrogatories are served objects and shows cause why the questions are not within the purview of the code section.” (Id., at p. 541, citing West Pico Furniture Co. v. Super. Ct. (1961) 56 Cal.2d 407, 422.)

Defendants seek further responses to Special Interrogatory Nos. 1, 3-5, 8-9, 12, 14, 29, 32, 35, 45, 54, and 67. (See generally, Defendants’ Separate Statement (“Def. SS”).) Defendants contends that the responses all fail to answer the interrogatories propounded. (Mot., at p. 4.)

Richard contends that Defendants’ argument concerns the merits of responses rather than their compliance with the Discovery Act and that Defendants improperly seek to conform Richard’s responses to the allegations of the Complaint. (Opp’n, at p. 4.)

(1)

The Responses at Issue

(a)

Special Interrogatory Nos. 5, 8-9, 54, and 67

Special Interrogatory Nos. 5, 8-9, 54, and 67 are contention-based, asking Richard either to state certain contentions or to state facts supporting certain contentions. (Def. SS, at pp. 7-9, 15-16.)

Richard responds to each of these interrogatories by denying the stated contentions and indicating what he does contend. (Def. SS, at pp. 7-9, 15-16.) For example, Special Interrogatory No. 54 asks Richard to “[s]tate all facts supporting YOUR contention that Chad Schott agreed to sell the PROPERTY to YOU without requiring a formal written agreement or escrow.” (Id., at p. 15.) Richard’s supplemental response states: “I do not contend that Chad Schott ‘agreed to sell’ the property to me, Instead I contend that he agreed that I would either be taking over the outstanding mortgage loan on the property or I would be obtaining a new loan for the outstanding balance of the mortgage.” (Id., at p. 16.)

Defendants contend that the foregoing responses are improper because the verified Complaint specifically refers to the stated contentions, including the existence of an agreement to sell the Subject Property. (Reply, at pp. 5-6.) As Richard notes in his Opposition, however, this argument goes to the sufficiency of Plaintiffs' claims and not the adequacy of Richard's responses under the Discovery Act. The Court finds that Richard's denial of the stated contentions, with articulation of what his true contention is, constitutes a complete response to a foregoing contention-based interrogatories.

(b)

Special Interrogatory Nos. 3, 4, and 29

Special Interrogatory Nos. 3, 4, and 29

ask Richard to identify all documents and communications supporting the existence of an agreement between the parties and all documents on which Richard relied in preparing and filing the Complaint. (Def. SS, at pp. 5-6, 11.)

Richard responds to these interrogatories by generally identifying "emails, texts and checks" attached to the responses. (Def. SS, at p. 6-7, 12.)

Defendants assert that this response is incomplete and nonresponsive because it refers only to generalized categories of documents, without identifying any specific document by date, author, or description sufficient to permit identification. (Def. SS, at pp. 6-7, 12.)

Richard contends that the specification is sufficient under the Discovery Act, identifying the documents from which the answer can be ascertained with enough detail for Defendants to locate the information. (Plaintiff's Separate Statement ("Pl. SS"), at pp. 3-5, 8-9.) Richard's attorney attests that four attachments were served with the responses, supplying the documents responsive to each of Interrogatory Nos. 3, 4, 29, and 33. (Barnholtz Decl., ¶ 5.) Those attachments comprised 256 pages of emails and text messages between Richard and Chad that support the existence of the agreement and were relied upon in preparing the Complaint. (Ibid.)

The

Discovery Act permits a party to respond to an interrogatory by referring to

Code of Civil Procedure section 2030.230 and specifying the documents from which an answer to the interrogatory can be ascertained. (Code Civ. Proc., § 2030.230.) The specification must include sufficient detail to allow the propounding party to locate and identify the documents from which the answer can be ascertained. (Ibid.) The Court finds that Richard's specification of documents, which supplies the documents as exhibits indicating the interrogatory to which they are responsive, satisfies this standard.

(c)

Special Interrogatory Nos. 1, 12, 14, 32, 35,
and 45

Defendants argue that the responses to the remaining requests at issue are evasive because they do not respond to the interrogatories as propounded. (Mot., at p. 4.)

Special Interrogatory No. 1 asks Richard to "[s]tate all terms of the AGREEMENT YOU contend existed between YOU and Chad Schott regarding the PROPERTY." (Def. SS, at p. 2.) Richard's third supplemental response is a narrative summary of the terms to which the parties agreed—in essence, the Subject Property was to be transferred to Plaintiffs by virtue of an assumption of the existing mortgage or a mortgage replacement after Plaintiffs had made monthly payments of \$3,000 to Defendants to pay down the existing mortgage. (Id., at p. 3.) Richard states that there was no specified date for the takeover, but Chad represented to Richard that the Subject Property was his and Richard made improvements to the Subject Property accordingly. (Id., at pp. 3-5.) The Court finds this to be a complete and straightforward response. Insofar as Defendants contend that it is unsatisfactory because it fails to state a specific timeline of transfer or definite purchase price (Id., at p. 5), that again goes to the sufficiency of the claims and not the completeness of the response.

Nos. 12 and 14 ask Richard to describe the basis or nature of his legal and equitable interests in the Subject Property. (Def. SS, at p. 10.) Richard's response states that his legal interest in the Subject Property is based on "[a] handshake and a man's word based on [the] agreement," and that the equitable interest is based on 15 years' mortgage payments made on Chad's promise that Plaintiffs would enjoy any equity earned. (Id., at pp. 10-11.) The Court finds that these are straightforward responses to the substance of the question. While Defendants

challenge its adequacy because the response does not label the interest or specify facts such as who made any alleged promises or when (*Id.*, at pp. 10-11), Richard notes that detailed information concerning the agreement is included in the response to Special Interrogatory No. 1.

No. 32 asks Richard to state the content of each communication to Chad in which Richard indicated that he possessed considerable evidence supporting his claims. (Def. SS, at pp. 12-13.) Richard responds: "I believe the 'content' of the communication was precisely that I believed 'I had considerable evidence.'" (*Ibid.*) Defendants contend that this response fails to state the content of any communication. (*Ibid.*) However, the response plainly states that the content of the communication was that Richard possessed considerable evidence.

No. 35 asks Richard to state the basis for his demand to Chad for \$30,000 for repairs to the Subject Property. (Def. SS, at pp. 13-14.) The response states that the demand was made in response to Chad's contention that Richard was merely a tenant and was based on the fact that costs incurred for repairs would normally be the landlord's responsibility. (*Ibid.*) Defendants argue that this response is incomplete because it does not state how the figure was calculated or identify any supporting documents or communications. (*Ibid.*) The Court finds the response to be a straightforward response to the interrogatory, providing a rationale for Richard's demand for the repair costs. Insofar as Defendants sought more specific information regarding what repair costs were incurred, Richard's counsel attests that that information was provided in response to other interrogatories, attaching the responses to his declaration. (Barnholtz Decl., ¶ 10, Exh. 1.)

Special Interrogatory No. 45 asks how Richard calculated his alleged monetary damages of \$789,600. (Def. SS, at p. 14.) The response indicates that the figure was calculated by Richard's prior counsel, who to the best of his understanding calculated it with consideration of the cost of the improvements Richard made to the property and the difference between the fair market rental value and the payments actually made. (*Ibid.*) Defendants challenge the adequacy of this response because it disclaims knowledge of the calculation. (*Ibid.*) However, the Discovery Act permits a responding party to state that he lacks sufficient information to respond fully to an interrogatory. (Code Civ. Proc., § 2030.220, subd. (c).) The response, which explains that Richard did not perform the calculation of

damages stated in the Complaint and responds to the best of Richard's understanding, is not incomplete for failure to include itemized figures.

Based on the foregoing, the Court DENIES the Motion.

D.

Request for Sanctions

"The court may impose a monetary sanction and order that one engaging in the misuse of the discovery process ... pay the reasonable expenses, including attorney's fees, incurred by anyone as a result of that conduct." (Code Civ. Proc. § 2023.030, subd. (a).) Misuse of the discovery process includes making an evasive response to discovery. (Id., § 2023.010, subd. (f).)

"The court shall impose a monetary sanction ... against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel a further response to interrogatories, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust." (Code Civ. Proc., § 2030.300, subd. (d).)

Defendants request monetary sanctions in the amount of \$1,500.00 pursuant to Code of Civil Procedure section 2030.300, subdivision (d).) As the Court has denied the Motion, Defendants are not entitled to sanctions.

The request for sanctions is therefore DENIED.

CONCLUSION

Defendants' motion to compel Plaintiff Richard Jones to further respond to their Special Interrogatories, Set One is DENIED.

Defendants' request for sanctions is DENIED.

Moving party to give notice.